

11.	LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868	1. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Alai’s Motion to Compel Further Responses to Form Interrogatories (FROGs) by Law Office (ROA 732) is GRANTED. Alai’s supplemental separate statement states the dispute remains as to Form Interrogatories 12.1 and 17.1. No. 12.1 seeks information regarding witnesses. Plaintiff provided substantive responses which Defendant asserts are incomplete because Defendant identifies categories of unspecified witnesses including “employees and officers of the website provider.” If Plaintiff has the contact information of such witnesses, Plaintiff must provide it or state it is unknown to Plaintiff. No. 17.1 seeks information related to Plaintiff’s responses to requests for admission. Because Plaintiff’s responses to RFAs 1-11, discussed above, were not unqualified admissions, Plaintiff must respond in detail as to facts, witnesses, and documents supporting those portions of the request which Plaintiff denies. Plaintiff shall serve further responses to Nos. 12.1 and 17.1 within seven days. The request for sanctions is denied because both sides acted with substantial justification as to this motion. 2. MOTION TO COMPEL FURTHER RESPONSES TO FORM INTERROGATORIES Alai’s Motion to Compel Further Responses to FROGs by Law Office (ROA 722) is GRANTED. As to Plummer, Alai seeks further responses to Nos. 12.1, 17.1, and 9.2. The motions are granted as to 12.1 and 17.1 for the same reasons set out above. No. 9.2 seeks identification of documents supporting Plaintiff’s damages. Plaintiff’s response includes the subject website and “all links.” Plaintiff must specifically identify each document or website he contends supports his damages. Therefore, the motion is granted as to 9.2. The request for sanctions is denied because both sides acted with substantial justification as to this motion.
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3. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Alai's Motion to Compel Further Responses to Special Interrogatories, Set One (SPROGs) by Law Office (ROA 727) is GRANTED in part.

Defendant's supplemental separate statements states the dispute remains as to Special Interrogatory Nos. 1, 2, 3, 5, 6, 9, and 12. "Defendant narrows the remaining dispute as to Special Interrogatory No. 5 to Plaintiff's continued reference to unidentified "employees and officers of the website provider," to the extent such persons are known to Plaintiff. Defendant also narrows Special Interrogatory No. 2 to the time period January 1, 2005 to present." (p. 1.)

Nos. 1, 2, and 3 seek information regarding prior lawsuits involving Plaintiff. Nos. 5, 6, and 9 seek evidence supporting Plaintiff's damages claim. No. 12 asks Plaintiff to describe all conversations with Defendant Alai from 1/1/05 to present.

Plaintiff's responses to Nos. 1, 2, and 3 which are evasive because they "incorporate the Court's February 9, 2023 findings by reference," but do not list the requested information regarding other cases Plaintiff has been involved in, which is reasonably calculated to lead to discovery of evidence regarding whether Plaintiff is a vexatious litigant. Plaintiff shall serve complete, substantive responses without objection to Nos. 1, 2, and 3.

Nos. 5, 6, and 9 are reasonably calculated to discovery evidence of Plaintiff's claim for defamation and damages and Plaintiff's responses are evasive because Plaintiff lists categories of individuals, communications, and documents without making a reasonable effort to identify each specific witness, communication, and document responsive to the request.

No. 12 is overbroad as to time and subject matter regarding communications between the parties, especially in light of the ongoing litigation between the parties.

Therefore, Plaintiff shall serve further responses to Nos. 1, 2, 3, 5, 6, and 9 within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

4. MOTION TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES

Alai's Motion to Compel Further Responses to SPROGs by Plummer (ROA 737) is GRANTED in part.

These requests and responses are substantially identical to those addressed in Motion No. 3. Therefore, for the same reasons Plaintiff shall serve further responses to Nos. 1, 2, 3, 5, 6, and 9 within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

5. MOTION TO COMPEL PRODUCTION

Alai's Motion to Compel Further Responses to Requests for Production (RFPs) by Law Office (ROA 752) is GRANTED.

Defendant's supplemental separate statement seeks further responses to RFPs 1, 10, 16, and 17.

Nos. 1, and 10 seek all documents related to each lawsuit filed by Plaintiff since 2009 including all documents related to each lawsuit filed by Plaintiff against a former client. The requests are overbroad. However, Plaintiff shall produce the complaint for all lawsuits filed by Plaintiff since 2009.

No. 16 seeks all documents reflecting State Bar grievances filed against Plaintiff since 2005. Plaintiff's response states, "after a diligent search and reasonable inquiry for responsive documents within Plaintiff's possession, custody or control, Plaintiff will not comply with this request because there are no record of false and frivolous 'grievances.' (Typically, a lunatic will want to sue the government for hearing voices inside their head, and when the case is rejected, will complain about his "great case" being rejected. No record is kept of such things.)"

Plaintiff's response to No. 16 is evasive because it does not include a clear statement of compliance or inability to comply. Plaintiff must serve a complete, non-evasive response compliant with Code of Civil Procedure sections 2031.210, 2031.220, and 2031.230.

No. 17 seeks a copy of every dismissal without prejudice filed on behalf of Plaintiff since 2005. The request is reasonably calculated to lead to discovery of evidence regarding the assertion that Plaintiff is a vexatious litigant and Plaintiff has failed to substantively respond other than identifying this Court's 2/9/23 findings.

Plaintiff shall serve further substantive responses within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

6. MOTION TO COMPEL PRODUCTION

Alai's Motion to Compel Further Responses to RFPs by Plummer (ROA 717) is GRANTED.

Regarding Plummer, Alai states the dispute remains regarding Requests for Production Nos. 1, 4, 5, 10, 16, and 17.

The motion is granted as to Nos. 1, 10, 16, and 17 for the reasons stated as to Motion No. 5.

Nos. 4 and 5 seek all documents related to or supporting Plaintiff's claim for damages. Plaintiff generally identifies documents produced via Sharefile in discovery. However, Plaintiff must specify each document or bates-numbered range of documents with particularity to allow Defendant to respond to his damages claim.

Plaintiff shall serve further substantive responses within seven days of service of notice of this order.

Defendant's request for sanctions is granted in the amount of \$1,100.00.

7. MOTION TO DEEM FACTS ADMITTED

Defendant Nili Alai, M.D.'s (Alai) Motion to Compel Further Responses to Requests for Admission, Set One (RFAs) from Plaintiff Law Offices of Mark B. Plummer, PC (Law Office) (ROA 711) is GRANTED in part.

Defendant filed a supplemental statement on 7/31/26 pursuant to the Court's order which states the disputed RFAs currently include Nos. 1-11.

Code of Civil Procedure section 2033.220 provides that, regarding requests for admissions,

“(b) Each answer shall:

(1) Admit so much of the matter involved in the request as is true, either as expressed in the request itself or as reasonably and clearly qualified by the responding party.

(2) Deny so much of the matter involved in the request as is untrue.

(3) Specify so much of the matter involved in the request as to the truth of which the responding party lacks sufficient information or knowledge.

(c) If a responding party gives lack of information or knowledge as a reason for a failure to admit all or part of a request for admission,

that party shall state in the answer that a reasonable inquiry concerning the matter in the particular request has been made, and that the information known or readily obtainable is insufficient to enable that party to admit the matter.”

The subject RFAs seek admissions related to other litigation involving Plaintiff, including whether such litigation was dismissed or resolved adversely to Plaintiff. The requests are reasonably calculated to lead to discovery of admissible evidence regarding the truth of Defendant’s alleged statement that Plaintiff is a vexatious litigant. (Code Civ. Proc. § 2017.010.)

Plaintiff served substantive responses to RFAs 2, 4, 5, 8, 9, 10, and 11, generally stating the subject lawsuits were dismissed in consideration for payment. These responses are sufficient under section 2033.220.

Plaintiff refused to serve substantive responses to RFAs 1, 3, 6, and 7, objecting on grounds including that the appeals were “not the type of case that would result in a ‘final determination’” as defined under Code of Civil Procedure section 577. The responses are insufficient and Plaintiff must serve supplemental responses admitting or denying whether the outcome of the appeal was adverse to Plaintiff.

Because trial is set for 9/18/26 and the trial date is firm, Plaintiff shall serve further responses within five days of service of notice of this order.

Defendant’s request for sanctions is granted in the amount of \$1,100.00.

8. MOTION TO DEEM FACTS ADMITTED

Alai’s Motion to Compel Further Responses to RFAs by Plaintiff Mark B. Plummer (Plummer) (ROA 742) is GRANTED in part.

The requests and responses in dispute are apparently identical to those addressed in Motion No. 7.

Plummer shall serve further responses to RFA Nos. 1, 3, 6, and 7 within seven days.

Defendant’s request for sanctions is granted in the amount of \$1,100.00.

9. MOTION TO QUASH SUBPOENA

Plaintiffs’ Motion to Quash Subpoena to Jocelyn Plummer is DENIED.

Plaintiffs move to quash Defendant's subpoena for business records to Jocelyn Plummer, Plaintiff Mark Plummer's wife. Plaintiffs contend the subpoena is a surreptitious attempt to conduct discovery related to other lawsuits between the parties, including Jocelyn Plummer's lawsuit for malicious prosecution against Defendant.

The subpoena seeks documents related to the permitting and construction of Plaintiffs' office. The subpoena is reasonably calculated to lead to discovery of admissible evidence regarding the alleged falsity of Defendant's statement that Plaintiffs' office is unsafe/unpermitted. (Code Civ. Proc. § 2017.010.) That such documents may have relevance in the related lawsuits does not preclude discovery of those issues which are potentially relevant in this case.

Therefore, the motion is denied. Jocelyn Plummer shall produce all responsive documents in her possession, custody, or control within seven days of this order.

10. MOTION TO QUASH SUBPOENA

Plaintiffs' Motion to Quash Defendant's Subpoena to Mark Norred is GRANTED.

Plaintiffs move to quash Defendant Alai's subpoena to Mark Norred, CPA, which seeks evidence from Plaintiff's accountant regarding this lawsuit and Plaintiff's alleged loss of revenue as well as documents regarding any lawsuit between Plaintiff and Norred.

Plaintiffs assert the subpoena seeks protected tax return information and Plaintiff has not claimed lost earnings. Plaintiff also contend Defendant failed to serve a notice to consumer before serving the subpoena.

Defendant denies seeking tax returns and asserts that Norred's records are potentially relevant to Plaintiff's damages claim.

Plaintiffs failed to engage in reasonable efforts to meet and confer before filing the motion. However, because trial is approaching the Court will address the merits of the motion instead of requiring additional meet and confer efforts.

A subpoena must be accompanied by a "notice to consumer" if it seeks "personal records," which are defined as follows by Code of Civil Procedure section 1985.3, which includes records maintained by an "accountant":

"(1) 'Personal records' means the original, any copy of books, documents, other writings, or electronically stored information pertaining to a consumer and which are maintained by any 'witness'

	which is a physician, dentist, ophthalmologist, optometrist, chiropractor, physical therapist, acupuncturist, podiatrist, veterinarian, veterinary hospital, veterinary clinic, pharmacist, pharmacy, hospital, medical center, clinic, radiology or MRI center, clinical or diagnostic laboratory, state or national bank, state or federal association (as defined in Section 5102 of the Financial Code), state or federal credit union, trust company, anyone authorized by this state to make or arrange loans that are secured by real property, security brokerage firm, insurance company, title insurance company, underwritten title company, escrow agent licensed pursuant to Division 6 (commencing with Section 17000) of the Financial Code or exempt from licensure pursuant to Section 17006 of the Financial Code, attorney, accountant, institution of the Farm Credit System, as specified in Section 2002 of Title 12 of the United States Code, or telephone corporation which is a public utility, as defined in Section 216 of the Public Utilities Code, or psychotherapist, as defined in Section 1010 of the Evidence Code, or a private or public preschool, elementary school, secondary school, or postsecondary school as described in Section 76244 of the Education Code.” Here, the subject subpoena to Plaintiffs’ accountant was served without a notice to consumer, so it must be quashed under Code of Civil Procedure section 1985 et seq.
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